

Monetary sanctions, however, remain appropriate regardless of whether production is completed before the hearing. Under section 2031.320(b), the Court “shall impose” a monetary sanction against a party who unsuccessfully opposes a motion to compel compliance, unless it finds substantial justification or that other circumstances make sanctions unjust. (CCP § 2031.320(b).) Defendant’s opposition promised only future performance and did not contest the underlying failure to produce, nor offer substantial justification for the months long delay (from March 16, 2026, when verifications were served, through at least July 2, 2026) that necessitated this motion. Plaintiff’s requested sanctions of \$1,410.00, calculated at a \$300 hourly rate for approximately 4.5 hours of attorney time plus a \$60 filing fee, are reasonable. (Zemming Decl. ¶ 6.)

At the hearing, the Court will inquire into the status of Defendant’s compliance with her verified agreement to produce documents responsive to RFP Set Two Nos. 18–25.

- If Defendant has completed production of all documents she agreed to produce before the hearing, the motion to compel compliance is **MOOT**.
- If Defendant has not completed production by the hearing, the Court will **GRANT** the motion and **ORDER** Defendant to produce all documents she agreed to produce in response to RFP Set Two Nos. 18–25, within 10 days of the date of the order.
- Separately, the Court **GRANTS** Plaintiff’s request for monetary sanctions in the amount of \$1,410.00.

2.

CASE #	CASE NAME	HEARING NAME
CVME2402823	MOTON vs GIBSON	MOTION TO COMPEL

Tentative Ruling:

See #1 above.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500864	HARVEY vs OGDEN 26 LLC	MOTION TO COMPEL

Tentative Ruling:

Hearing continued to September 1, 2026 by stipulation of parties.